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Case Number: 26STCV02831 Hearing Date: July 27, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

RYAN

FOLEY, et al.,

Plaintiffs,

vs.

PABLO

M. SOTO, et al.,

Defendants.

Case No.:

26STCV02831

Hearing

Date:

July 27,

ORDER DENYING CROSS-DEFENDANTS' SPECIAL MOTION TO
STRIKE (ANTI-SLAPP MOTION)

I. BACKGROUND

Plaintiffs

Ryan Foley ("Foley"), Thea Ceclia Martin ("Martin"), Katherine Joy Robinson ("Robinson"), Gillian Kay Rochkind ("Rochkind"), and Marissa Estela Solorzano ("Solorzano") worked as hair stylists at Defendant Pablo Soto Hair LLC dba Rock Paper Salon ("RPS"), managed by Defendant Pablo M. Soto ("Soto"). Soto allegedly placed various limitations on Plaintiffs to restrict their financial autonomy and freedom to provide services as preferred, and also required Plaintiffs perform various duties beyond their styling roles. When Foley raised concerns about the working conditions, Soto allegedly terminated his contract. Plaintiffs sue Defendants for fourteen causes of action, including failure to pay wages and unlawful retaliation.

On

May 14, 2026, Defendants filed a Cross-Complaint against Plaintiffs and Cross-Defendants Ryan Foley LLC ("RF") and Kat Hairs L.L.C. ("KH") for seven causes of action, including implied indemnity. Defendants' Cross-Complaint alleges Soto performed various duties at the direction and for the benefit of Cross-Defendants without proper compensation.

On

June 24, 2026, RF and KH ("Moving Cross-Defendants") filed the instant special motion to strike (or "anti-SLAPP motion") to the first cause of action for implied indemnity in the first amended cross-complaint (FACC) under Code of Civil Procedure section 425.16.[1] Defendants filed an opposition.

II. LEGAL STANDARD

"Litigation of an anti-SLAPP motion involves a two-step process. First, 'the moving defendant bears the burden of establishing that the challenged allegations or claims 'aris[e] from' protected activity in which the defendant has engaged.' [Citation.] Second, for each claim that does arise from protected activity, the plaintiff must show the claim has 'at least 'minimal merit.' [Citation.]" (Bonni v. St. Joseph Health System

(2021) 11 Cal.5th 995, 1009, citations omitted.) To separate communications which form the source of the dispute from those that merely provide evidence of it, courts ask whether “the same dispute would exist” if there were no pending threat of litigation. (Gotterba v. Travolta (2014) 228 Cal.App.4th 35, 42.)

As to the second step of the inquiry, a plaintiff seeking to demonstrate the merit of the claim “may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent admissible evidence.” (Sweetwater Union High School District v. Gilbane Building Co. (2019) 6 Cal.5th 931, 940, citations omitted.)

A party opposing a special motion to strike has the burden to “state [] and substantiate [] a legally sufficient claim.” (Navellier v. Sletten (2002) 29 Cal.4th 82, 88 & 93.) “Put another way, the party “must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the defendant is credited.” [Citations.]” (Id. at pgs. 88-89.) To that end, the party must present competent evidence, “that would be admissible at trial.” (HMS Capital, Inc. v. Lawyers Title Co. (2004) 118 Cal.App.4th 204, 212.) “[D]eclarations may not be based upon ‘information and belief’ [citation]” and documents submitted without the proper foundation will not be considered. (Id.) The complaint, even if verified, is insufficient to carry the plaintiff’s shifted burden. (Roberts v. Los Angeles County Bar Association (2003) 105 Cal.App.4th 604, 614; Karnazes v. Ares (2016) 244 Cal.App.4th 344, 354 [“pleadings do not constitute evidence”]; see also Burke, Anti-SLAPP Litigation (The Rutter Group, Civil Litigation Series 2018 §5:13) [“To satisfy prong two, the plaintiff must submit admissible evidence that if credited is sufficient to sustain a favorable judgment against the legal theories asserted by the defendant.”].)

“A cause of action is subject to a special motion to strike if the defendant shows that the cause of action arises from an act in furtherance of the defendant’s constitutional right of petition or free speech in connection with a public issue and the plaintiff fails to demonstrate a probability of prevailing on the claim. [Citations.]” (Digerati Holdings, LLC v. Young Money Entertainment, LLC (2011) 194 Cal.App.4th 873, 883.)

“An ‘act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue’ is defined by statute to include ‘(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.’ [Citation.] If the defendant shows that the cause of action arises from a statement described in clause (1) or (2) of section 425.16, subdivision (e), the defendant is not required to separately demonstrate that the statement was made in connection with a ‘public issue.’ [Citation.]” (Id.)

“A cause of action is one ‘arising from’ protected activity within the meaning of section 425.16, subdivision (b)(1) only if the defendant’s act on which the cause of action is based was an act in furtherance of the defendant’s constitutional right of petition or free speech in connection with a public issue. [Citation.] In deciding whether the ‘arising from’ requirement is satisfied, ‘the court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’ [(§ 425.16(b)(2).)] Whether the ‘arising from’ requirement is satisfied depends on the ‘gravamen or principal thrust’ of the claim. [(Episcopal Church Cases (2009) 45 Cal.4th 467, 477, quoting *Martinez v. Metabolife International, Inc.* (2003) 113 Cal.App.4th 181, 193.)] A cause of action does not arise from protected activity for purposes of the anti-SLAPP statute if the protected activity is merely incidental to the cause of action. [(*Martinez*, 113 Cal.App.4th at pg. 188.)]” (*Digerati Holdings, LLC*, 194 Cal.App.4th at pgs. 883-884.) To show that a claim arises from protected activity under §425.16(b)(1), it is not sufficient to show that the claim “was filed after, or because of, protected activity, or when protected activity merely provides evidentiary support or context for the claim.” (*Rand Resources, LLC v. City of Carson* (2019) 6 Cal.5th 610, 621.) “Rather, the protected activity must ‘supply

elements of the challenged claim.’ [Citation.]”

(Id., citations omitted.)

“At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage.” (Baral v. Schnitt (2016) 1 Cal.5th 376, 396, emphasis added.)

III. DISCUSSION

Moving

Cross-Defendants request the Court strike the FACC’s first cause of action for implied indemnity as it arises from Moving Cross-Defendants’ protected exercise of right of petition. Pursuant to section 425.16, subdivision (b), a cause of action against a person arising from the person’s right of petition or free speech shall be subject to a special motion to strike unless the court determines the plaintiff has established there is a probability the plaintiff will prevail on the claim.

A. Statement of Facts

The FACC generally alleges Soto regularly performed unpaid work for all Plaintiffs, including RF and KH, who were alter egos of Foley and Robinson respectively. (FACC ¶¶ 12, 13, 22-29.) The first cause of action, for implied indemnity, is only brought against RF and KH. It alleges Foley’s injuries, as alleged in the underlying complaint, were the acts and/or omissions of RF and RF was comparatively responsible; RF was responsible for ensuring Foley’s employment complied with the California Labor Code, as well as for any violations of the code. (FACC ¶¶ 31-33.) Similarly, KH was comparatively responsible for Robinson’s injuries and for failing to ensure Robinson’s compliance with the California Labor Code. (FACC ¶¶ 34-37.) Defendants claim they are entitled to indemnity from RF and KH as a result of and damages sustained from Foley and Robinson’s causes of action against them. (FACC ¶¶ 37-38.)

B. Protected Activity

Moving Cross-Defendants assert Moving Cross-Defendants’ activity as to the claim for implied indemnity is

protected, satisfying the first prong of an anti-SLAPP motion, as the activity consists of Foley and Robinson filing a lawsuit.

The Anti-SLAPP statute defines relevant protected activity as follows:

“(1)

any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (§ 425.16, subd. (e).)

Moving

Cross-Defendants assert the alleged activity is protected under 425.16, subdivisions (e)(1) and (e)(2), as it consists of a written statement or writing made before a judicial proceedings and statements made in connection with an issue under consideration or review by a judicial body. Moving Cross-Defendants specifically assert that, because the indemnity claim identifies the only loss to Defendants as damages sustained as a result of Foley and Robinson’s causes of action against Defendants, these claims arise out of protected activity.

Causes of action for equitable indemnity may be subject to an anti-SLAPP motion. (See *Fremont Reorganizing Corp. v. Faigin* (2011) 198 Cal.App.4th 1153, 1177.) In resolving an anti-SLAPP motion, the court does not rely on the form of the complaint or the name of a cause of action but instead determines the conduct from which the claim arose and whether that conduct was constitutionally protected. (*Crossroads Investors, L.P. v. Fed. Nat’l Mortg. Ass’n.* (2017) 13 Cal.App.5th 757, 780-781.) The court’s focus is on “what actions by the defendant form the basis for liability” and “the speech or petitioning activity itself” must constitute ‘the wrong complained of.’ ” (*C.W. Howe Partners Inc. v. Mooradian* (2019) 43 Cal.App.5th 688, 701.)

Defendants' indemnification claim is not premised upon the filing of the complaint, but on RF and KH's allegedly failure to ensure Foley and Robinson's employment complied with the California Labor Code. (FACC ¶¶ 31-37.) The only connection to the Moving Cross-Defendants' underlying petitioning activity is that the request for damages is based upon damages suffered in an amount to be proven at trial as a result of Foley and Robinson's underlying complaint. (FACC ¶ 38.)

Moving Cross-Defendants argue that the request for damages is sufficient to deem the gravamen of the protected activity to arise from Moving Cross-Defendant's protected activity, as but for the litigation, the claim against Moving Cross-Defendants would have no basis. Moving Cross-Defendants argument is based in part on *Navellier v. Sletten* (2002) 29 Cal.4th 82, 90. However, further case law expanded upon the limits of *Navellier*.

"But we decline to read *Navellier* so broadly as to establish that a claim arises from protected activity any time that the claim would not have been brought had that activity not occurred. The holding the [moving party] asks us to reach would mean that the first prong of the anti-SLAPP analysis is categorically satisfied every time an action seeks indemnification for litigation expenses, because those expenses can only be incurred in connection with litigation, a protected activity. Such a conclusion is irreconcilable with *Navellier*'s own statement that the fact "that a cause of action arguably may have been 'triggered' by protected activity does not entail that it is one arising from such" (*Navellier*, at p. 89, 124 Cal.Rptr.2d 530, 52 P.3d 703), not to mention the Supreme Court's more recent emphasis on "the distinction between activities that form the basis for a claim and those that merely lead to the liability-creating activity."

(*Wong v. Wong* (2019) 43 Cal.App.5th 358, 367, citations omitted). Only upon a showing the actual underlying claims are related to the litigation will the Court find the action arises from protected activity. Here, the Cross-Complaint clearly alleges Moving Cross-Defendants are liable for their own failure to comply with the California Labor Code, resulting in, at least, comparative injury to Foley and Robinson for the claims Foley and Robinson put at issue.

Moving Cross-Defendants have failed to meet their burden of demonstrating the

underlying activity of the claim for implied indemnity is protected activity under 425.16, subdivisions (e)(1) and (e)(2). The first prong has not been satisfied. Therefore, the Court denies the motion.

C. Attorneys' Fees

The party prevailing on a special motion to strike may seek an attorney fee award through three different avenues: simultaneously with litigating the special motion to strike, by a subsequent noticed motion, or as part of a cost memorandum. (Carpenter v. Jack in the Box Corp. (2007) 151 Cal.App.4th 454.) Should Defendants wish to pursue such relief, they are directed to file a noticed motion and reserve a hearing through the CRS.

CONCLUSION

Based on the foregoing, Cross-Defendants Ryan Foley LLC and Kat Hairs L.L.C.'s special motion to strike Cross-Complainants Pablo Soto Hair LLC dba Rock Paper Salon and Pablo M. Soto's Cross-Complaint is DENIED.

Defendants are ordered to give notice.

DATED:
July 27, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE
TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.